

Court No. - 21

Case :- WRIT - C No. - 53740 of 2012

Petitioner :- Shri Krishna Kumar Sharma

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- A.L. Yadav

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Het Singh Yadav,J.

On prayer made by Sri A.L.Yadav, learned counsel for the respondent nos. 1 to 3, the case is directed to be put-up as fresh on 31.10.2012 so as to enable him to obtain instructions in the matter.

Having regard to the facts and circumstances of the case and having considered the submissions made by the learned counsel for the parties, it is provided that till the next date fixed in the matter, the Executive Engineer (respondent no.2) will not make Final Assessment pursuant to the Provisional Assessment dated 8.12.2011 , if the same has not already been done.

Order Date :- 12.10.2012

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Court No. - 21

Case :- WRIT - C No. - 53740 of 2012

Petitioner :- Shri Krishna Kumar Sharma

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- A.L. Yadav

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Het Singh Yadav,J.

As prayed, put up on 26.11.2012 as fresh case.

Interim order dated 12.10.2012 will continue to remain operative till the next date fixed in the matter.

Order Date :- 31.10.2012

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Court No. - 21

Case :- WRIT - C No. - 53740 of 2012

Petitioner :- Shri Krishna Kumar Sharma

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- A.L. Yadav

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Het Singh Yadav,J.

Pursuant to the order dated 31.10.2012, the case has been put up today as a fresh case.

Sri Amrit Lal Yadav, learned Counsel for the Respondent Nos. 1 to 3 states that instructions have been received by him in the matter. Let a Counter Affidavit be filed on behalf of said Respondents within three weeks.

Rejoinder Affidavit may be filed by the next date fixed in the matter.

List this case on 22nd January, 2013.

Interim order dated 12.10.2012 will continue to remain operative till the next date fixed in the matter.

Order Date :- 26.11.2012

AS

Court No. - 21

Case :- WRIT - C No. - 53740 of 2012

Petitioner :- Shri Krishna Kumar Sharma

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- A.L. Yadav,S.C.

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Zaki Ullah Khan,J.

Case called out.

Shri B.C. Rai, learned counsel for the petitioner is present.

List this case on 27.2.2013.

Interim order, as contained in the order dated 12.10.2012, will continue to remain operative till the next date fixed in the matter.

Order Date :- 22.1.2013

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Court No. - 3

Case :- WRIT - C No. - 53740 of 2012

Petitioner :- Shri Krishna Kumar Sharma

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- A.L. Yadav, S.C.

Hon'ble Laxmi Kanta Mohapatra, J.

Hon'ble B. Amit Sthalekar, J.

List after two weeks.

Interim order granted earlier by this Court is extended till the next date of listing.

Order Date :- 27.2.2013

PKB

Court No. - 3

Case :- WRIT - C No. - 53740 of 2012

Petitioner :- Shri Krishna Kumar Sharma

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- A.L. Yadav,S.C.

Hon'ble Laxmi Kanta Mohapatra,J.

Hon'ble Mrs. Sunita Agarwal,J.

List after two weeks.

Interim order, if operative today, shall continue to remain in operation till the next date of listing.

Order Date :- 15.3.2013

P.P.

Court No. - 21

Case :- WRIT - C No. - 53740 of 2012

Petitioner :- Shri Krishna Kumar Sharma

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- A.L. Yadav, S.C.

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Yogesh Chandra Gupta, J.

Case called out.

Learned counsel for the petitioner is present.

List this case before the appropriate Bench on 13th May, 2013.

Interim Order, already granted, if operative today, will continue to remain operative, till the next date fixed in the matter.

Order Date :- 4.4.2013

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Court No. - 21

Case :- WRIT - C No. - 53740 of 2012

Petitioner :- Shri Krishna Kumar Sharma

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- A.L. Yadav,S.C.

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Vipin Sinha,J.

Case called out.

Learned counsel for the petitioner is present.

List this case before the appropriate Bench on 23.05.2013.

The interim order, already granted, if operative today, will continue to remain operative till the next date fixed in the matter.

Order Date :- 13.5.2013

Sandeep

Court No. - 3

Case :- WRIT - C No. - 53740 of 2012

Petitioner :- Shri Krishna Kumar Sharma

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- A.L. Yadav, S.C.

Hon'ble Laxmi Kanta Mohapatra, J.

Hon'ble Rakesh Srivastava, J.

Because of the Full Bench, the regular Division Bench could not sit till 4 O' Clock.

On being mentioned, case is taken up in Chamber.

List in the next cause list.

The interim order granted earlier, is extended till the next date of listing.

Order Date :- 23.5.2013

Arun K. Singh

Court No. - 32

Case :- WRIT - C No. - 53740 of 2012

Petitioner :- Shri Krishna Kumar Sharma

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- A.L. Yadav,S.C.

Hon'ble Prakash Krishna,J.

Hon'ble Manoj Kumar Gupta,J.

Learned counsel for the petitioner submits that the respondent has not filed any counter affidavit.

Three weeks further time is granted to file counter affidavit.

List in the month of August, 2013.

The stay order is extended till further orders.

(M.K. Gupta, J) (Prakash Krishna, J)

Order Date :- 30.5.2013

LBY

Court No. - 32

Case :- WRIT - C No. - 53740 of 2012

Petitioner :- Shri Krishna Kumar Sharma

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- A.L. Yadav, Baleshwar Chaturvedi, S.C.

Hon'ble Shashi Kant Gupta, J.

Hon'ble Rajiv Gupta, J.

As prayed by the learned counsel appearing for the Electricity Department, two weeks' time is granted for filing counter affidavit. The petitioner will have two weeks' time thereafter for filing rejoinder affidavit.

List immediately thereafter.

Order Date :- 2.7.2018

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Court No. - 32

Case :- WRIT - C No. - 53740 of 2012

Petitioner :- Shri Krishna Kumar Sharma

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- A.L. Yadav, Baleshwar Chaturvedi, S.C.

Hon'ble Shashi Kant Gupta, J.

Hon'ble Ajit Kumar, J.

Learned Standing counsel prays for and is granted 10 days' time to file counter affidavit in the matter. Rejoinder affidavit, if any, may be filed within one week thereafter.

List immediately thereafter.

Order Date :- 6.8.2018

Atmesh

Court No. - 32

Case :- WRIT - C No. - 53740 of 2012

Petitioner :- Shri Krishna Kumar Sharma

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- A.L. Yadav, Baleshwar Chaturvedi, S.C.

Hon'ble Shashi Kant Gupta, J.

Hon'ble Ajit Kumar, J.

Today memo of appearance has been filed by Sri Ashutosh Dwivedi, Advocate on behalf of respondent nos. 2 and 3, which is taken on record.

As prayed by Sri Ashutoshh Dwivedi, Advocate, three weeks time is allowed to file counter affidavit. Rejoinder affidavit, if any, may be filed within two weeks thereafter.

List immediately thereafter showing the name of Sri Ashutosh Dwivedi as counsel for respondent nos. 2 and 3.

Order Date :- 11.9.2018

Sanjeev

Court No. - 40

Case :- WRIT - C No. - 53740 of 2012

Petitioner :- Shri Krishna Kumar Sharma

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- A.L. Yadav, Baleshwar Chaturvedi, S.C.

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Harsh Kumar, J.

Heard Shri B.C. Rai, learned counsel for the petitioner and Shri Baleshwar Chaturvedi, learned counsel for the respondents.

The challenge raised is that the Assistant Engineer, Revenue could not have issued the proposed assessment notice and, therefore, the consequential notice issued by the Executive Engineer is bad in law. For this, reliance is sought to be placed on the notification issued by the State Government empowering the Executive Engineer to carry out the assessment proceedings.

According to the provisions of the U.P. Electricity Supply Code, 2005 there is no doubt that the power to carry out provisional assessment vests in the Executive Engineer concerned. The proposal for the assessed amount issued by the Assistant Engineer, Revenue on behalf of Executive Engineer is only a calculation sheet which is intended for the purpose of calling upon the petitioner to file his response to the same.

Having considered the same, we are not inclined to entertain this petition on the arguments so advanced leaving it open to the petitioner to raise his objection, if any, before the Executive Engineer himself.

Accordingly, the petition is consigned to record.

Order Date :- 22.10.2018

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